

SENATE No. 2301

The Commonwealth of Massachusetts

PRESENTED BY:

Paul W. Mark

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act enabling municipal aggregation.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/3/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>2/3/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/3/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>3/3/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>3/26/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>10/15/2025</i>

SENATE No. 2301

By Mr. Mark, a petition (accompanied by bill, Senate, No. 2301) of Paul W. Mark, Lindsay N. Sabadosa, Natalie M. Blais, Joanne M. Comerford and others for legislation relative to investor-owned utilities and expedited approval processes ensuring timely access to funds for energy efficiency and conservation programs. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enabling municipal aggregation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 134 of Chapter 164 the General Laws as appearing in the 2022 Official Edition is
2 hereby amended by adding at the end after subsection (b) the following new subsection:-

3 (c) (i) The DPU shall require investor-owned utilities, within three months of the
4 enactment of this section, to create a non-export interconnect permit tariff for customers of a
5 Municipal Aggregation. The investor-owned utility shall not charge a fee for the permit, and
6 shall not require studies or otherwise charge or delay issuance of the permit to a customer of a
7 Municipal Aggregation whose municipal government is seeking to build renewable Distributed
8 Energy Resources for the benefit of itself, its residents and/or business within its jurisdictional
9 boundaries who are enrolled in its Municipal Aggregation program.

10 (ii)The DPU shall approve or reject, within three months, the application of a
11 municipality it has certified as a Municipal Aggregation program to the Massachusetts clean

12 energy technology center for monies from the Massachusetts Renewable Energy Trust Fund,
13 established pursuant to Section 9 of Chapter 23J, to receive and expend moneys from the demand
14 side management system benefit charges or line charges in an amount not to exceed that
15 contributed by retail customers within said municipality or group of municipalities under Section
16 134 (b) of Chapter 164.

17 (iii) Failure to approve or reject after three months shall constitute approval. Rejection
18 shall state the specific provisions of the municipality's application that do not comply with state
19 policy, but shall not place conditions on the use of the funds, or the design of municipal energy
20 efficiency programs, provided that they are spent only on energy efficiency and conservation
21 measures. Furthermore, municipal governments with approved petitions, as a Municipal
22 Aggregator, in order to administer the energy efficiency funds shall be provided a pro rata share
23 of those funds within one year of approval.